

25STCP00635 25STCP00635

County: los-angeles

Division: Civil Law and Motion

Department: 415

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 1, 2026

CASE NUMBER

25STCP00635

MOTION

Motion for Attorney Fees

MOVING PARTY

Petitioner Wendy Drum

OPPOSING PARTY

Respondent Joel Drum

MOTIONS

Petitioner

Wendy Drum ("Petitioner") prevailed in this action to confirm an arbitration

award Petitioner obtained against Respondent Joel Drum ("Respondent"). Now, Petitioner seeks attorney fees and costs. Respondent opposes

the motion.

In its May 29, 2026 order, the Court considered the matter,

determined the hearing had been scheduled in error that day, continued the hearing

to this date, and directed the parties to file further briefing. The matter had also been continued from an

earlier hearing date of May 5, 2026 because Petitioner had not provided detailed

billing records in support of her motion.

ANALYSIS

The prevailing

party must seek an award of attorneys by way of a noticed motion and bears the

burden of proof to justify the amount sought.

(See Code Civ. Proc., § 1033.5, subd. (c)(5)(A).) Petitioner is entitled to recover her fees in

the proceedings to enforce its arbitration award. (See Code Civ. Proc., § 1293.2; *Austin v.*

Allstate Ins. Co. (1993) 16 Cal.App.4th 1812, 1815-1816.)

In connection with her moving papers, as noted

above, Petitioner did not initially provide billing records to substantiate her claim. As Respondent pointed out in

opposition, he could not evaluate the reasonableness of the sums

Petitioner seeks without detailed billing records. The Court requires such records to determine "the

actual hours counsel has devoted to the case, less those that result from

inefficient or duplicative use of time."

(*Horsford v. Board of Trustees of California State University*

(2005) 132 Cal.App.4th 359, 395 (*Horsford*).) Now, Petitioner has filed billing records in

support of her request for an award of attorney fees in the amount of \$88,152.33. (See Second Supplemental Declaration of Robyn

B. Christo, ¶ 8, Exhibits A, B.)

Respondent filed a

supplemental opposition to challenge the billing records. In this regard, Respondent objects to billing

entries which reflect communications with the Law Offices of Steven F. Kamm, counsel

for Alice Fishler and Melissa Enlow in *Drum v. Fishler, et. al.* (Super.

Ct. L.A. County, 2025, Case No. 25STCV12394 (Case No. 25STCV12394)). However, as Case No. 25STCV12394 is closely

related to the instant case, the Court concludes communications in that matter are

compensable. (See *Children's Hospital*

and Medical Center v. Bonta (2002) 97 Cal.App.4th 740, 779-780 ["California case law clearly provides a trial court discretion to award a fee that compensates work performed in a collateral action that may not have been absolutely necessary to the action in which fees are awarded but was nonetheless closely related to the action in which fees are sought and useful to its resolution"].)

Likewise, Respondent's other objections to the billing records are unpersuasive. For example, Respondent argues Petitioner's counsel spent too much time in connection with various tasks. "The basis for the trial court's calculation must be the actual hours counsel has devoted to the case, less those that result from inefficient or duplicative use of time." (Horsford, supra, 132 Cal.App.4th at p. 395.) The Court cannot conclude Petitioner's counsel was inefficient because Petitioner's counsel did not complete various tasks as quickly as Respondent contends he would have. Likewise, it is immaterial Petitioner may have asserted various arguments which were unsuccessful. "[A]ll time reasonably spent should be compensated . . . , even if Petitioner's argument was ultimately unsuccessful. (Sundance v. Municipal Court (1987) 192 Cal.App.3d 268, 274.)

Petitioner's lodestar figure is based on billing at hourly rates of up to \$775 per hour. "The reasonable market value of the attorney's services is the measure of a reasonable hourly rate. This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel." (Chacon v. Litke (2010) 181 Cal.App.4th 1234, 1260, internal quotations and citations omitted.) Based on the Court's experience in reviewing requests for attorney fees in similar litigation and the evidence before the Court, the Court concludes Plaintiff's average hourly rate of \$431.67 is a reasonable rate for attorneys engaged in similar litigation in the Los Angeles area. (Stratton v. Beck (2017) 9 Cal.App.5th 483, 496.)

Although the Court finds Petitioner's detailed billing records establish the number of hours Petitioner's attorneys devoted to this matter is reasonable, the Court, nonetheless, will reduce those hours by 4.8 because that appears to be the amount of additional time Petitioner devoted to providing the detailed billing records the Court required, which should have been provided initially. The Court, therefore, reduces the lodestar figure to \$84,477.82 based on 195.7 hours worked at a rate of \$431.67 an hour.

Therefore, the

Court grants Petitioner's request for attorney fees in the amount of \$84,477.82.

The Court notes

Petitioner also seeks costs of \$2,315.19 as reflected in a cost memorandum separately filed on June 26, 2026, which is subject to challenge pursuant to California Rules of Court, rule 3.1700(b).

Petitioner is to

give notice of the Court's ruling and to file proof of service of same.